

51.	Horste v. SC Investments LLC 2023-01302494	Attorney Ali Kamarei and Auto Legal Group, LLC's motion to be relieved as counsel of record for defendant/cross-complainant SC Investments, LLC is GRANTED as it relates to this forum, effective upon the filing of the proof of service of the signed order upon the client. A status conference is set for July 24, 2026 at 9:00 a.m. in Department C28. As SC Investments, LLC cannot appear in this court without counsel, it shall appear the scheduled date with new counsel. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Failure to do so will result in the imposition of sanctions against SC Investments, LLC. Moving Attorney shall provide notice of this ruling.
52.	Jimenez v. Richardson 2025-01519604	Defendant Swish Studios, LLC's (Swish) demurrer to complaint is SUSTAINED, with 10 days leave to amend. <u>7th-9th causes of action for negligent hiring, supervision, and retention.</u> The complaint fails to state facts sufficient to constitute the 7th, 8th, and 9th causes of action for negligent hiring, supervision, and retention. (See CACI No. 426 [elements]; <i>Phillips v. TLC Plumbing, Inc.</i> (2009) 172 Cal.App.4th 1133, 1139-1140 [liability for negligent hiring, supervision, and/or retention is one of direct liability for negligence, not vicarious liability; "[n]egligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes' "; <i>Z.V. v. County of Riverside</i> (2015) 238 Cal.App.4th 889, 902 [plaintiff must establish the employer had prior knowledge of the actor's propensity to do the bad act].) While the complaint alleges "[defendant Darnell K.] Richardson had a known criminal record prior to his employment, which a background check would have revealed" (Compl. ¶ 12), not all criminal histories show a predisposition to commit violent attacks. <u>10th cause of action, negligent infliction of emotional distress (NIED).</u> The complaint fails to state facts sufficient to constitute the 10th cause of action for NIED. (See <i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1071-1074 [a cause of action for NIED is not an independent tort but simply the tort of negligence, the elements of which are the existence of a duty, breach, causation, and damages].) <u>11th cause of action, vicarious liability.</u> The complaint fails to state facts sufficient to allege vicarious liability. Specifically, it fails to allege facts sufficient to show Richardson was acting